

where lands are limited to trustees with an authority to grant leases, or stock is transferred to trustees with a power of varying the securities; for in such cases the power forms no integral part of the trust, but is merely collateral and subsidiary, and the execution of it, in the absence of fraud, cannot be compelled by application to the Court.

4. **Trusts lawful and unlawful.** — Again, trusts may be divided, with reference to the object in view, into *lawful* and *unlawful*.¹ The former, such as are directed to some honest purpose (as a trust to pay debts, &c.), which are called by Lord Bacon *Intents* or *Confidences*, and will be administered by the Court. The latter are trusts created for the attainment of some end contravening the policy of the law, and therefore not to be sanctioned in a forum [*20] professing not only justice but *equity, as a trust to defraud creditors or to defeat a statute. Such are designated by Lord Bacon as *Frauds*, *Covins*, or *Collusions* (a).

5. **Trusts public and private.** — Another division of trusts is into *public* and *private*. By public must be understood such as are constituted for the benefit either of the public at large or of some considerable portion of it answering a particular description. To this class belong all trusts for *charitable* purposes, and indeed *public* trusts and *charitable* trusts may be considered in general as synonymous expressions (b). In *private* trusts the beneficial interest is vested absolutely in one or more individuals who are, or within a certain time may be, definitely ascertained, and to whom, therefore, collectively, unless under some legal disability, it is, or within

(a) Bac. on Uses, 9.

(b) See Attorney-General v. Aspinall, 2 M. & Cr. 622; Attorney-General v. Heelis, 2 S. & S. 76; Attorney-General v. Corporation of Shrewsbury, 6 Beav. 220; Walker v. Richardson, 2 M. & W. 392; Attorney-General v. Webster, 20 L. R. Eq. 483. But see Attorney-General v. Forster, 10 Ves. 344; Attorney-General v. Newcombe, 14 Ves. 1; Fearon v. Webb, ib. 19; Dolan v. Macdermot, 5 L. R. Eq. 60

(in which M. R. observed "*Public purposes* are such as mending or repairing roads, supplying water, making or repairing bridges, and are distinguished from *charities* in the shape of almsgiving, building almshouses, founding hospitals, and the like;" but *public* purposes, he added, "*are all in a legal sense charities*"); affirmed on appeal, 3 L. R. Ch. App. 677.

¹ Lewis v. Nelson, 1 McCarter, 94.